

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
LAZIZ ABDURAKHMANOV,

Plaintiff,

-against-

THE CITY OF NEW YORK . POLICE OFFICER
MATTHEW JAMES, SHIELD 27321,

Defendants,
-----X

Index #

Date Filed:

SUMMONS

The basis of venue is place of
occurrence.

Place of occurrence:
Surf Ave and West 19th St
in County of Kings.

TO THE ABOVE NAMED DEFENDANTS:

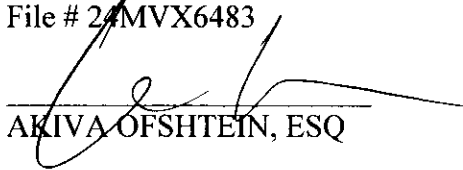
YOU ARE HEREBY SUMMONED to appear in this action by serving a notice of appearance on plaintiff's attorneys within 20 days after service of this summons, exclusive of the day of service, or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, Judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: Brooklyn, New York
November 18, 2024

Yours, etc.,

OFSHTEIN LAW FIRM, P.C.
Attorney for Plaintiff(s)
LAZIZ ABDURAKHMANOV
398 Kings Highway
Brooklyn, NY 11223
(718)455-5252
File # 24MVX6483

BY:


AKIVA OFSHTEIN, ESQ

DEFENDANTS ADDRESSES:

THE CITY OF NEW YORK

1 Centre Street

Municipal Building

New York, NY 10007

e-mail: serviceecf@law.nyc.gov

Police Officer Michael James

NYPD 60th Precinct

2951 West 8th Street

Brooklyn, NY 11224

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
LAZIZ ABDURAKHMANOV,

Plaintiff,

-against-

THE CITY OF NEW YORK , POLICE OFFICER
MATTHEW JAMES, SHIELD 27321,

Defendants,
-----X

Index No.:

VERIFIED
COMPLAINT

Plaintiff, **LAZIZ ABDURAKHMANOV** by his attorneys, OFSHTEIN LAW
FIRM, P.C., complaining of the Defendants, **THE CITY OF NEW YORK & POLICE**
OFFICER MATTHEW JAMES, SHIELD 27321, respectfully alleges upon information and
belief as follows:

1. At all times relevant to this action, Plaintiff **LAZIZ ABDURAKHMANOV** is and
was a resident of the County of Kings, City and State of New York.

2. Defendant **CITY OF NEW YORK** is and was at all times relevant herein a municipal
entity created and authorized under the laws of the State of New York. It is authorized by law to
maintain a police department, which acts as Defendant **CITY OF NEW YORK** 's agent in the area
of law enforcement and for which it is ultimately responsible. Defendant **CITY OF NEW YORK**
assumes the risks incidental to the maintenance of a police force and the employment of police
officers.

3. Defendant **CITY OF NEW YORK** was at all times relevant herein the public
employer of **POLICE OFFICER MATTHEW JAMES, SHIELD 27321**.

4. **POLICE OFFICER MATTHEW JAMES, SHIELD 27321.** (hereinafter “PO JAMES”) was at all times relevant herein, duly appointed and acting officers, servants, employees, and agents of the New York City Police Department (hereinafter “NYPD”), a municipal agency of defendant **CITY OF NEW YORK** .

5. At all times herein, **PO JAMES** was acting under the color of his official capacity, and their acts were/are performed under color of the statutes and ordinances of the **CITY OF NEW YORK** and/or the State of New York.

6. The actions of **PO JAMES** complained of herein were done as part of the custom, practice, usage, regulation and/or at the direction of the defendant **CITY OF NEW YORK**

7. Plaintiffs is suing **PO JAMES** in his individual and official capacities.

NOTICE OF CLAIM & PROCEDURAL HISTORY

8. On or about March 29, 2024, the Hon. Patria Frias-Colón, J.S.C. granted Plaintiff’s Motion for leave to file a Late Notice of Claim (“NOC”), under Kings County Index # 535089/2023, and the Court ordered that the November 30, 2023 NOC, duly served upon the **CITY OF NEW YORK** was timely filed nunc pro tunc.

9. On or about May 29, 2024, an examination of the Plaintiff was conducted by the **CITY OF NEW YORK** pursuant to section 50-h of the General Municipal Law.

10. On or about December 1, 2023, Plaintiff filed a lawsuit in the Eastern District of New York (1:23-cv-08851-PKC-JAM), within one (1) year and ninety (90) days after the causes of action complained of accrued, alleging Federal Civil rights claims of false arrest and malicious prosecution along with state law claims of negligence, intentional infliction of emotional distress, and municipal liability.

11. On or about November 14, 2024 the Court granted Plaintiff's voluntary motion to dismiss the case filed in federal court and allowed Plaintiff to refile their state law claims against **THE CITY OF NEW YORK & PO JAMES**.

12. Pursuant to 28 U.S. Code § 1367(d), the period of limitations for any claim asserted under subsection (a), and for any other claim in the same action that is voluntarily dismissed at the same time as or after the dismissal of the claim under subsection (a), shall be tolled while the claim is pending and for a period of 30 days after it is dismissed unless State law provides for a longer tolling period---therefore Plaintiff's instant state law claims are timely.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS
THE CITY OF NEW YORK & POLICE OFFICER MATTHEW JAMES, SHIELD 27321**

13. That on September 26, 2022, Defendant, **CITY OF NEW YORK**, was the registered owner of a 2018 Ford, motor vehicle bearing State of New York registration number 468018.

14. That on September 26, 2022, Defendant, **CITY OF NEW YORK**, was the lessor of a 2018 Ford, motor vehicle bearing State of New York registration number 468018.

15. That on September 26, 2022, Defendant, **CITY OF NEW YORK**, was the lessee of a 2018 Ford, motor vehicle bearing State of New York registration number 468018.

16. That on September 26, 2022, Defendant, **PO JAMES**, was the operator of a 2018 Ford, motor vehicle bearing State of New York registration number 468018.

17. That on September 26, 2022, Defendant, **PO JAMES**, was controlling the 2018 Ford, motor vehicle bearing State of New York registration number 468018.

18. That on September 26, 2022, Defendant **PO JAMES**, was controlling the 2018 Ford, motor vehicle bearing State of New York registration number 468018, with the knowledge of the defendant owner.

19. That on September 26, 2022, Defendant, **PO JAMES**, was controlling 2018 Ford, motor vehicle bearing State of New York registration number 468018, with the permission of the defendant owner.

20. That on September 26, 2022, Defendant, **PO JAMES**, was controlling the 2018 Ford, motor vehicle bearing State of New York registration number 468018, with the express consent of the defendant owner.

21. That on September 26, 2022, Defendant, **PO JAMES**, was controlling the 2018 Ford, motor vehicle bearing State of New York registration number 468018, with the implied consent of the defendant owner.

22. That on September 26, 2022, Defendant, **PO JAMES**, was operating and controlling the 2018 Ford, motor vehicle bearing State of New York registration number 468018, traveling on Surf Avenue at its intersection with West 19th Street, in County of Brooklyn, City and State of New York.

23. At the aforesaid date and place, Plaintiff, **LAZIZ ABDURAKHMANOV**, was a lawful passenger in a 2020 Nissan, motor vehicle bearing State of New York registration number JEN6217, traveling on Surf Avenue at its intersection with West 19th Street, in County of Brooklyn, City and State of New York, when defendant's motor vehicle came into contact with **PO JAMES'** motor vehicle causing a collision.

24. That as a result of the aforesaid contact, Plaintiff, **LAZIZ ABDURAKHMANOV** was injured.

25. The severe collision caused extreme injuries through Plaintiff's body including but not limited to chest trauma and damage to both of his legs that almost left him paralyzed. As a result of the collision Plaintiff had passed out and inexplicably woke up in the hospital in police custody.

Plaintiff was admitted from September 26, 2022 through October 14, 2022 when he was discharged to Phoenix Rehabilitation Center and Nursing Center for almost 7 months until May 26, 2023.

26. As a result of his accident Plaintiff has undergone over 17 surgical procedures on his legs from October of 2022 through November of 2023. Plaintiff has also went to over 30 medical appointments (after his initial 2 week ER admission) from September 2022 to the November of 2023. Plaintiff will continue to need physical therapy, additional doctors visits, and potentially more surgeries to correct the issues to hid legs. Plaintiff has not been able to walk or resume work since the incident.

27. That the aforesaid occurrence was caused wholly and solely by reason of the negligence of the Defendant **PO JAMES** without any fault or negligence on the part of the Plaintiff contributing thereto.

28. That Defendant **PO JAMES** was negligent, careless and reckless in the ownership, operation, management, maintenance, supervision, use and control of the aforesaid vehicles and the Defendant was otherwise negligent, careless, and reckless under the circumstances then and there prevailing.

29. That Defendant, **CITY OF NEW YORK**, was negligent in failing to train, **PO JAMES**, on how to properly drive his vehicle.

30. That by reason of the foregoing, Plaintiff, **LAZIZ ABDURAKHMANOV**, sustained severe and permanent personal injuries; and Plaintiff was otherwise damaged.

31. That Plaintiff, **LAZIZ ABDURAKHMANOV**, sustained serious injuries as defined by §5102(d) of the Insurance Law of the State of New York.

32. That Plaintiff, **LAZIZ ABDURAKHMANOV**, sustained serious injuries and economic loss greater than basic economic loss as defined by §5104 of the Insurance Law of the State of New York.

33. That Plaintiff, **LAZIZ ABDURAKHMANOV**, is not seeking to recover any damages for which Plaintiff has been reimbursed by no-fault insurance and/or for which no-fault insurance is obligated to reimburse Plaintiff. Plaintiff is seeking to recover only those damages not recoverable through no-fault insurance under the facts and circumstances herein.

34. That this action falls within one or more of the exceptions set forth in CPLR §1602.

35. That by reason of the foregoing, Plaintiff, **LAZIZ ABDURAKHMANOV**, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANT
CITY OF NEW YORK**

36. Plaintiff, repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as though each were more fully set forth at length herein.

37. The actions of PO James in this matter, including striking Plaintiff with defendant's police vehicle, occurred during the course and scope of defendant's duties and functions as a New York City police officer, and while defendant was acting as an agent, officer, servant and employee of the NYPD which is a police force maintained by **THE CITY OF NEW YORK**. As a result, **THE CITY OF NEW YORK** is liable to Plaintiff pursuant to the state common law doctrine of respondeat superior, in an amount which will be determined at trial.

38. That by reason of the foregoing, Plaintiff, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction

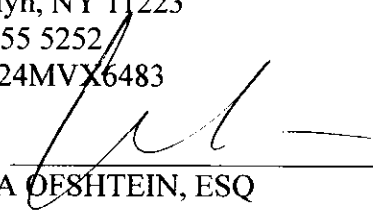
WHEREFORE, Plaintiff, **LAZIZ ABDURAKHMANOV**, demands judgment against the Defendants, **THE CITY OF NEW YORK & POLICE OFFICER MATTHEW JAMES, SHIELD 27321**, on all causes of action, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

DATED:

Brooklyn, New York
November 18, 2024

Yours, etc.,

OFSHTEIN LAW FIRM, P.C.
Attorney for Plaintiff(s)
LAZIZ ABDURAKHMANOV
398 Kings Highway
Brooklyn, NY 11223
(718)455 5252
File # 24MVX6483

BY: 

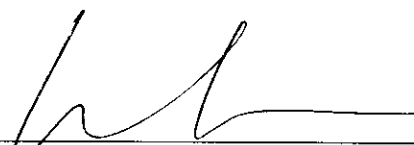
AKIVA OFSHTEIN, ESQ

ATTORNEY VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of New York State, states that I am the attorney of record for the Plaintiff, LAZIZ ABDURAKHMANOV, in the within action; I have read the foregoing, VERIFIED SUMMONS AND COMPLAINT, and know the contents thereof; the same is true to my own knowledge, except as to the matters stated to be alleged on information and belief, and as to those matters I believe same to be true. This verification is made by affirmant because the above-named plaintiff is not within and/or does not maintain a principle place of business in the County of Kings, wherein this office is located. The grounds of belief as to all matters not stated upon personal knowledge are information contained in the office file, investigation and/or conversations with the above-named plaintiff.

I affirm the foregoing statement is true, under the penalty of perjury.

Dated: Brooklyn, New York
November 20, 2024


AKIVA OFSHTEIN, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF KINGS

Index No.:

LAZIZ ABDURAKHMANOV,

PLAINTIFF,

-AGAINST-

THE CITY OF NEW YORK, POLICE OFFICER MATTHEW JAMES, SHIELD 27321,

DEFENDANTS,

VERIFIED SUMMONS AND COMPLAINT

OFSHTEIN LAW FIRM PC

Attorneys for Plaintiff

398 Kings Highway

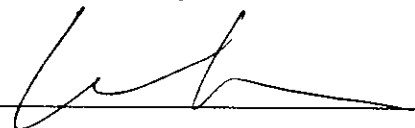
Brooklyn, NY 11223

718.455-5252

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney duly admitted to practice law before the Court of State of New York, certifies that, upon information and belief and reasonable inquiry, the contention contained in an annexed hereto document are not frivolous.

Dated: 11/18/24

Signature



Name:

Service of a copy of the within is hereby admitted.

Dated:

Attorneys for Plaintiff

PLEASE TAKE NOTICE:

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a

entered in the office of the clerk of the within named Court on ,20

☐ NOTICE OF SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the Hon.

one of

the judges of the within named Court, at on 201_, at M.